

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WHEELS FINANCIAL GROUP, LLC vs. ANTONIO CALLAHAN
Case No. CL25-07497**

Plaintiff's Motion to Set Aside Dismissal Pursuant to CCP §664.6

TENTATIVE RULING

Plaintiff's motion to set aside dismissal pursuant to CCP Section 664.6 is denied without prejudice. Plaintiff has not submitted a declaration providing evidence that Defendant has breached the settlement agreement. While the motion references a "Noel Dec.", it appears that the "Noel Dec." was not included.

Further, regarding future motions in this case, the Court notes as follows. Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

In the present case, Defendant has not filed any responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail on Defendant. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

As to future motions, Plaintiff is directed to effect service of the motion papers in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the hearing date.

WELLS FARGO BANK, N.A. vs. CAROLYN VERNER
Case No. CL26-00208

Plaintiff's Motion to Deem Matters Admitted

TENTATIVE RULING

Plaintiff's unopposed motion to deem matters admitted is GRANTED. Each of the requests for admissions is deemed to be admitted.

JAIME ANDUJO vs. GENERAL MOTORS, LLC
Case No. CU23-00155

Plaintiff's Motion for Attorneys' Fees

TENTATIVE RULING

On the Court's own motion, the hearing on Plaintiff's motion for attorney fees is continued to July 24, 2026.

JESSE MORRIS vs. TREVOR BARLETT; ET AL.
Case No. CU23-05798

Motion for Confirmation of Referee's Final Report

TENTATIVE RULING

Parties to appear.

The referee's final report calculates the amount of rent collected from the property by multiplying 70 months with the monthly rent of \$1,825, which should equal \$127,750, but somehow concludes that the total is \$129,500. Additionally, the report assumes that Plaintiff has already paid the attorneys' fees out of pocket, but no evidence has been presented to establish that the fees have actually been paid.

JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522

Motion to Compel Depositions; Motion for Protective Order

TENTATIVE RULING

Motion to Compel Depositions

Plaintiffs' motion to compel the depositions of Defendants Wright, Lamera, and Cornelson is denied as premature.

A motion to compel deposition may be filed "[i]f, after service of a deposition notice, a party ..., ***without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it***". (Code Civ. Proc. § 2025.450(a), emphasis added.) A deposition notice must be served at least ten days before the date scheduled for the deposition. (Code Civ. Proc. § 2025.270(a).) The party served with the deposition notice has until three calendar days prior to the deposition date to serve a written objection. (Code Civ. Proc. § 2025.410(a).)

Plaintiffs served their deposition notices on February 4, 2026. (Decl. of Nessa Osuna, Exh. E.) The very next day, Plaintiffs filed this motion to compel. Defendants had no opportunity to serve objections to the notices or fail to appear for the scheduled depositions.

Motion for Protective Order

Defendants' motion for protective order is granted in part.

To the extent Defendants seek a protective order requiring Plaintiffs to limit any depositions to one day, the motion is granted. Unless the court has allowed additional time, a deposition must be limited to seven hours of total testimony, which should be able to be accomplished in a single day. (Code Civ. Proc. § 2025.290(a).) If Plaintiffs are unable to fairly examine the deponent within a day and the deponent does not agree to appear for another day, Plaintiffs may seek leave from the court for additional time. (*Ibid.*)

In all other respects, the motion is denied.

Plaintiffs are entitled to notice depositions 20 days after the appearance of any defendant in the action. (Code Civ. Proc. § 2025.210(b).) "Pleading deficiencies generally do not affect either party's right to conduct discovery." (*Mattco Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1436, fn. 3.) And, "California law permits the use of discovery to get information necessary to plead a cause of action." (*Union Mut. Life Ins. Co. v. Superior Court* (1978) 80 Cal.App.3d 1, 11.) The pendency of a

demurrer challenging Plaintiffs' pleading does not cause Defendants' discovery obligations to become unduly burdensome.

Defendants raised, for the first time in reply, the claim that Defendant Lamera is a high government official who should not be subject to deposition absent a showing of compelling reasons under the "apex doctrine". The court will not "consider issues raised for the first time in a reply brief." (*Am. Indian Model Schs. v. Oakland Unified Sch. Dist.* (2014) 227 Cal.App.4th 258, 275.)

JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.
Case No. CU24-09570

AMROCK's Demurrer to Complaint

TENTATIVE RULING

Defendant AMROCK TITLE CALIFORNIA ("AMROCK") demurs to Plaintiff JOSEPH GULLO's first amended complaint alleging violation of the Fair Debt Collection Practices Act and unlawful business practices.

Plaintiff's opposition filed May 7, 2026 concedes the insufficiency of the operative complaint. Plaintiff requests leave to amend. Leave to amend should be allowed when a defect is capable of cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Policy favors liberal granting of leave to amend where there is no prejudice to the opposing party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) The Court finds a reasonable possibility that Plaintiff can amend his complaint to cure defects in his first amended complaint.

AMROCK's demurrer is sustained with leave to amend. Plaintiff must file his second amended complaint within 20 days of the date of service of this order.

EBONAE WEBB vs. PACE SOLANO INC.
Case No. FCS058246

Motion to Strike Punitive Damages and Other Irrelevant Allegations from Plaintiffs' Complaint

TENTATIVE RULING

Preliminarily, the court has earlier advised Plaintiff EBONAE WEBB ("WEBB") that the claims she has asserted on behalf of her minor children can only be pursued by appointment of a guardian ad litem, and that this guardian must be represented by a

licensed California attorney. Yet WEBB, in pro per (without an attorney) continues to file, or to attempt to file, documents with the court on behalf of the minor children.

Regarding the present motion by Defendants to strike Plaintiffs' complaint, WEBB presented for filing a first amended complaint, apparently in an attempt to render moot the motion to strike. C.C.P. §472(a) authorizes, by the deadline for filing opposition to a motion to strike, a plaintiff to file and serve a first amended complaint without leave of court. However, with no proof of service filed to show timely service of the first amended complaint by that deadline, and the assertion by WEBB still in pro per of claims on behalf of her minor children, without appointment of a guardian ad litem represented by a licensed California attorney, that document was rejected for filing.

WEBB thereafter, after the nine court days before hearing deadline set by C.C.P. §1005(b), filed opposition to this motion to strike. However, as noted, this opposition is late. In addition, no proof of service was filed, to show that a copy of the opposition papers was served on Defendants' counsel. For these reasons, the court has not considered the opposition papers.

A pro per litigant is not entitled to any special consideration.

Pro. per. litigants are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 [35 Cal. Rptr. 2d 669, 884 P.2d 126] ["A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation."]; accord, *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1281 [111 Cal. Rptr. 2d 439] (dis. opn. of Bedsworth, J.) [pro pers should not be treated the same, "only different"].) *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.

Defendants' motion to strike primarily sought to strike all punitive damage allegations in the complaint, and secondarily to strike reference to an Insurance Code statute, and all claims as against Defendant KELLY HANSON ("HANSON").

Civil Code §3294 authorizes recovery of punitive damages upon "clear and convincing" evidence of "oppression, fraud or malice". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:156, p. 61.

To properly allege punitive damages, a plaintiff must allege specific facts to support them, not merely conclusory words like "oppression, malice or fraud". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:158, p. 62.

To survive a motion to strike, on a claimed basis of malicious conduct, more than mere negligence or even recklessness in a motor vehicle accident situation must be alleged. A plaintiff must allege facts sufficient to demonstrate "conscious disregard of safety".

In order to justify an award of punitive damages, the defendant must be guilty of oppression, fraud or malice. He must act with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights. In a personal injury action, conscious disregard of safety is an appropriate description of the animus malus which may justify an exemplary damage award when non deliberate injury is alleged. Magallanes v. Superior Court (1985) 167 Cal.App.3d 878, 883.

The allegations in the complaint are of a garden-variety motor vehicle accident caused by negligence.

The complaint's allegations of fraud do not adequately support any punitive damage claim. These allegations are not made with particularity, to include the specific facts showing defendant making a knowingly false representation, intended to deceive or induce reliance, causing justifiable reliance and resulting damages. Service by Medallion, Inc. v. Clorox Co. (1996) 44 Cal.App.4th 1807, 1816. There is also no third-party right to sue a tortfeasor's insurer (or a tortfeasor directly) for violation of Insurance Code bad-faith claims settlement practices. Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287, 304-305. Nor does the complaint allege any resulting damages from the alleged post-accident conduct of the Defendants.

The court therefore strikes all punitive damage allegations.

The court also strikes all allegations, and the entirety of the complaint, as to Defendant HANSON.

Defendants' motion included an admission that PACE would be liable for any negligence on the part of FAHEY, the driver involved in the subject motor vehicle accident. Thus, no cause of action against HANSON would be proper for negligent hiring, training, supervising and/or retaining of FAHEY. Diaz v. Carcamo (2011) 51 Cal.4th 1148. Furthermore, it is the employer, not a supervisor, who faces possible liability for the actions of an employee.

The doctrine of respondeat superior is not applicable to the relationship between a supervisor and his subordinate employees. The supervisor occupies an economic and legal position quite different from that of the employer. It is not the supervisor's work that is being performed, nor does he share in the profits which the employees' conduct is designed to produce. In the usual situation, furthermore, he, like his subordinates, is a wage earner, and he is seldom able to respond in damages to an appreciably greater extent than they. For these reasons, the law has shifted financial responsibility from the supervisor, who exercises immediate control, to the employer, who exercises ultimate control and for whose benefit the work is done. (Bank of California v. Western Union Telegraph Co., 52 Cal. 280, 288-292.) Section 2351 of the Civil Code codifies this principle and has been uniformly interpreted to exempt superior employees from vicarious liability to third persons for the tortious conduct of subordinates. (Hilton v. Oliver, 204 Cal. 535, 539 [269 P. 425, 61 A.L.R. 297]; Handley v.

Lombardi, 122 Cal.App. 2d, 29 [9 P.2d 867]; Barton v. McDermott, 108 Cal. App. 372, 384 [291 P. 591]; Los Angeles v. Los Angeles Pacific Navigation Co., 84 Cal.App. 413, 419 [258 P. 409]. See, also, Restatement, Agency, section 358(1); Ellis v. Southern Railway Co., 72 S.C. 465, 473 [52 S.E. 228, 2 L.R.A.N.S. 378]; 61 A.L.R. 290.) Malloy v. Fong (1951) 37 Cal.2d 356, 378-379.

See also C.A. v William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 871 [potential liability of school administrators for the negligent hiring or supervision of teachers and guidance counselors because of the existence of a special duty between the administrators and the students]; Taylor-El v. Cisneros (E.D.Cal. 2023) 2023 U.S.Dist.LEXIS 239052, *15 [special duty between supervisor and tort victim must exist for personal liability of supervisor, as “California law does not recognize a general duty of care on the part of supervisors with respect to negligent hiring, retention, or training”].

No potential for liability for HANSON arises out of the 7th cause of action for intentional infliction of emotional distress.

The elements of an intentional infliction of emotional distress cause of action include extreme and outrageous conduct by the defendant causing severe emotional distress. Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 (superseded by statute on other grounds, as stated in *Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699).

The complaint contains only vague allegations that HANSON “engaged in extreme and outrageous conduct by knowingly making, adopting, and relying on false accusations that Plaintiff fabricated or misrepresented a motor-vehicle collision, despite possessing dispatch recordings and corroborating evidence confirming the collision occurred and was reported” [Complaint, ¶43].

As earlier noted, such post-accident conduct by a supervisor in assessing claims arising of a motor vehicle accident is not actionable.

With no causes of action properly pled against HANSON, the court grants the motion to strike the entirety of the complaint as to claims against her.

The motion to strike is thus granted as stated above, without leave to amend.

With no demurrer filed by the other Defendants to any specific causes of action in the complaint, their answer(s) to the complaint, inclusive of all causes of action alleged against them in the complaint, will be due within 30 days.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free